

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2300579

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MITCHELL FRIEDMAN, ET AL vs. DEFENDANT: TAMALPAIS UNION HIGH SCHOOL DISTRICT, ET AL	
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NATURE OF PROCEEDINGS: 1) MOTION - JUDGMENT ON THE PLEADINGS
2) MOTION - SUMMARY JUDGMENT
3) MOTION - GOOD FAITH SETTLEMENT

RULING

Defendant Joseph Balistreri's ("Defendant") Motion for Summary Judgment on plaintiff Mitchell Friedman, as Guardian ad Litem for Benjamin Harding Friedman's ("Plaintiff") Complaint is DENIED.

Defendant's Motion for Judgment on the Pleadings is also DENIED.

BACKGROUND

Plaintiff filed his Complaint on March 2, 2023, alleging a single cause of action for negligence against Tamalpais Union High School District, Jean Harris, and Joseph Balistreri.

This case arises out of a March 25, 2022, incident in which Benjamin Harding Friedman ("Friedman") was injured while playing football at Tamalpais High School. (Separate Statement of Undisputed Material Facts ("UMF") No. 1.) At the time of the incident, Plaintiff was a high school freshman attending his seventh period P.E. class at Tamalpais High School. (UMF No. 2.) The day of the incident was "student choice" day in defendant Jean Harris's ("Harris") P.E. class. (UMF No. 3.) Plaintiff was part of a group that chose to play football that class. (UMF No. 4.) Plaintiff and Defendant both testified that the game included some level of physical contact. (UMF No. 5.) Plaintiff testified at his deposition that he believed they would play tackle football. (UMF No. 6.) The injury occurred while Plaintiff was playing offense and waiting to receive a pass from the player playing quarterback. (UMF No. 7.) As the ball came towards Plaintiff, he put his hands up to catch the ball. (UMF No. 8.) At the same time, Defendant went to make an interception. (UMF No. 9.) Both Plaintiff and Defendant were going for the ball at the time of

the collision. (UMF No. 10.) Defendant's shoulder impacted Plaintiff's jaw. (UMF No. 11.) Defendant did not intend to hurt or injure Friedman. (UMF No. 12.)

In sum, the parties are teenagers who played football during seventh-period P.E., and Plaintiff was injured in a student-student collision. Plaintiff contends that because football was among the class options, participation in the sport was effectively mandatory.

LEGAL STANDARD – MOTION FOR SUMMARY JUDGMENT

In reviewing a motion for summary judgment, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal. App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

“Once the defendant ... has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Ibid.*) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

DISCUSSION – MOTION FOR SUMMARY JUDGMENT

The basis for the Motion is that Plaintiff's claim is barred by the doctrine of primary assumption of the risk.

“When a defendant moves for summary judgment on the basis of implied assumption of the risk, he or she has the burden of establishing the plaintiff's primary assumption of the risk by demonstrating that the defendant owed no legal duty to the plaintiff to prevent the harm of which the plaintiff complains.” (*Patterson v. Sacramento City Unified Sch. Dist.* (2007) 155 Cal.App.4th 821, 826, as modified on denial of reh'g (Oct. 22, 2007).) Determining whether the primary assumption of risk doctrine applies is a legal question to be decided by the court. (*Ibid.*)

To establish a cause of action for negligence, the plaintiff must show that the ‘defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.’” (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) Under the general rule, persons have a duty to use due care to avoid injury to others and may be held liable if their failure to use due care injures another person. (*Hemady v. Long Beach Unified Sch. Dist.* (2006) 143 Cal.App.4th 566, 569, as modified (Oct. 30, 2006).) This is referred to as the “prudent person” standard of care. (*Ibid.*)

However, in *Knight v. Jewett* (1992) 3 Cal.4th 296 (*Knight*) and *Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1004 (*Kahn*), the Supreme Court established an exception to the prudent person standard of care in certain sports settings. (*Ibid.*) This is because dangerous conditions or conduct are often an integral part of the sport itself. (*Ibid.*) To prevent a fundamental alteration of certain sports and to guard against chilling a coach's role or discouraging vigorous participation in sports activities, in some cases, under the primary assumption of risk doctrine, a coach or coparticipant's potential liability is not governed by the prudent person duty of care. Rather there exists a more limited duty of care not to intentionally injure a player or engage in conduct that is so reckless as to be totally outside the range of the ordinary activity involved in the sport. (*Id.*, at p. 570.)

Cases have held this limited duty under the primary assumption of the risk doctrine does not apply to activities in mandatory P.E. classes. (See *Hemady v. Long Beach Unified Sch. Dist.*, *supra*, 143 Cal.App.4th 566 [Student was struck by a golf club in a physical education class during regular school hours, by and through a guardian ad litem sued the school district, the school, and the physical education teacher for negligence. Court of Appeal held that the prudent person duty of care, rather than the limited duty of care applying primary assumption of the risk doctrine to sporting activities, governed student's negligence claim]; see also *Nigel B. v. Burbank Unified Sch. Dist.* (2023) 93 Cal.App.5th 64, 72–73.)

In the case of *Nigel B. v. Burbank Unified School District*, a student at John Muir Middle School was injured in a physical education class during a game of touch football. (*Ibid.*) Because plaintiff's "participation in the physical education class was not voluntary on his part, but rather was required by the middle school's curriculum," the court declined to extend the application of the doctrine to a sports activity that is "part of a mandatory physical education class." (*Ibid.*)

Although Defendant attempts to distinguish the present case from *Nigel B*, the Court finds these are distinctions without difference. For example, Defendant points out that Nigel B. had been bullied by the classmate who injured him, that the ball had been thrown unnecessarily hard, and that although the present fact pattern occurred in a P.E. class, Plaintiff made the choice to play football as part of a "choose your own game" day.

There is no dispute that the incident occurred during a mandatory P.E. class. (See UMF No. 2.) The fact that there was some choice in the activities available during that mandatory P.E. class does not take the fact pattern outside of the *Nigel B.* holding. *Nigel B.* focused on the fact that the class itself was mandatory.

Accordingly, Defendant has not met his initial burden of showing the primary assumption of the risk doctrine bars Plaintiff's claims and the Motion for Summary Judgment is DENIED. The denial of the motion brings the issue out of the pleading stage and into the realm questions of fact to be determined by the jury.

LEGAL STANDARD – MOTION FOR JUDGMENT ON THE PLEADINGS

A motion for judgment on the pleadings "may only be made on one of the following grounds: If the moving party is a plaintiff, that the complaint states facts sufficient to constitute a cause or

causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438, subd. (c)(1)(A).)

Like a demurrer, a motion for judgment on the pleadings attacks defects disclosed on the face of the pleadings or by matters that may be judicially noticed. (*Alameda County Waste Management Authority v. Waste Connections US, Inc.* (2021) 67 Cal.App.5th 1162, 1173-1174.) A motion for judgment on the pleadings is similar to a demurrer in most respects. (*Ibid.*) Except as provided in the statute governing motions for judgment on the pleadings, the rules governing demurrers apply. (*Ibid.*)

A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) “[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution.” (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) Presentation of extrinsic evidence is not proper on a motion for judgment on the pleadings. (*Burnett, supra*, at p. 1063; *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.)

However, admissions and concessions which the parties cannot properly controvert may be properly considered on motion for judgment on pleadings, even if the admission negates an express allegation of the pleadings. (*Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital, LLC v. Cobb* (2019) 7 Cal.5th 156, 165.) Thus, a court may properly grant a motion for judgment on the pleadings based on judicial admissions. (*Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 186.)

DISCUSSION – MOTION JUDGMENT ON THE PLEADINGS

Defendant brings this Motion on the grounds that the Complaint fails to state facts sufficient to constitute a cause of action because the sole cause of action for negligence is barred by the doctrine of primary assumption of the risk.

To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal App.4th 654, 662.)

Code of Civil Procedure section 425.10 requires a statement of facts constituting the cause of action in ordinary and concise language. Code of Civil Procedure section 452 requires liberal construction. California uses an “ultimate facts” standard, negligence may be pleaded in general terms (*Guilliams v. Hollywood Hosp.* (1941) 18 Cal.2d 97; *Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149), but plaintiff must indicate the specific acts or omissions alleged to be negligent.

Here, the allegations are that Plaintiff and Defendant were part of a group of 12 students out of a class of 30, who were playing football while in the presence of their P.E. teacher. (See Compl., ¶ 7.) The Complaint further alleges that during the game, Defendant negligently and carelessly hit

Plaintiff in the head, causing him injury. (*Ibid.*) Finally the Complaint alleges this injury was proximately caused by Defendant's negligence. (*Id.* at ¶ 9.)

This is sufficient to state a cause of action for negligence.

To the extent that Defendant attempts to rely on an affirmative defense raised in his Answer, and not a lack of duty apparent on the face of the Complaint, on a motion for judgment on the pleadings, the Complaint cannot be attacked by reference to matters set forth in the answer. (*Hughes v. W. MacArthur Co.* (1987) 192 Cal.App.3d 951.)

The Motion for Judgment on the Pleadings is DENIED.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0001650

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: SHAWNA SIMS

vs.

DEFENDANT: MARIN GENERAL
HOSPITAL

NATURE OF PROCEEDINGS: 1) MOTION – SEAL
2) MOTION – SEAL
3) MOTION - LEAVE

RULING

Plaintiff filed Motions to seal unredacted declarations on June 15, 2026, and June 17.

Plaintiff's unopposed motions to seal unredacted declarations are GRANTED. The unopposed failure to respond by Defendant is deemed consent. (Cal. Rules of Court, rule 8.54(c); Marin Local Rule Civ. 2.8G.1.)

Plaintiff's motion is therefore GRANTED in its entirety.

Plaintiff's motion to permit representative class members to proceed under pseudonyms is DROPPED as moot considering the stipulation and order signed September 15, 2026.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

IT IS ORDERED Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.

FURTHER ORDERED Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0002210

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: LESTER PETRACCA

vs.

DEFENDANT: ELIZABETH THIERIOT,
ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: DECLARE DEFENDANT A
VEXATIOUS LITIGANT

RULING

Plaintiff Lester Petracca (“Plaintiff”) filed a Motion seeking to 1) Declare Defendant Elisabeth Thieriot (“Defendant”) a Vexatious Litigant; 2) Issue a Prefiling Order Prohibiting New Litigation; and 3) Issue an Order Compelling Compliance with the Court’s November 14, 2025, Order. The motion is GRANTED in its entirety.

DEFECTS IN THE OPPOSITION/REQUEST FOR LEAVE TO RESPOND

The Opposition violates the 15-page limit for responding memoranda under California Rules of Court, rule 3.1113(d). The memorandum in opposition is subject to the same page limits as the moving memorandum, in that it may not exceed 15 pages. Rule 3.113(d). Defendant’s overlength opposition violates California Rules of Court, rule 3.1113(d); the Court considers only the first 15 pages and DISREGARDS the excess. If the memorandum exceeds the page limit and the party has not obtained permission from the court to file a longer one, the memorandum will be deemed to have been filed late at the time of filing and can be struck from the file. Rule 3.113(g). It would be unfair to permit one party to have more say on any issue than the other.

Defendant’s Request for Leave to Respond is DENIED.

LEGAL STANDARD

The legislature enacted the vexatious litigant statutes (Code of Civil Procedure §§ 391–391.8) to curb misuse of the court system by self-represented litigants who repeatedly file baseless lawsuits or attempt to relitigate issues that were previously determined against them, and who thereby waste the time and resources of the court system and other litigants. (*Shalant v Girardi* (2011) 51 Cal.4th 1164, 1169; *Colombo v Kinkle, Rodiger & Spriggs* (2019) 35 Cal.App.5th 407,

419.) These statutes are constitutional and do not deprive vexatious litigants of due process of law. (*Fink v Shemtov* (2010) 180 Cal.App.4th 1160, 1170.)

A trial court exercises its discretion in determining whether a person is a vexatious litigant. (*Id.*, at p. 1169.) The critical finding to determine whether a litigant is vexatious is whether the litigant's actions are unreasonably impacting the objects of the actions and the courts, as contemplated by the vexatious litigant statute. (*In re Kinney* (2011) 201 Cal.App.4th 951, 957, 958.) The litigant “becomes a serious problem to others than the defendant he dogs. By clogging court calendars, he causes real detriment to those who have legitimate controversies to be determined and to the taxpayers who must provide the courts.” (*Taliaferro v. Hoogs* (1965) 237 Cal.App.2d 73, 74.)

Pursuant to Code of Civil Procedure section 391.7, a court may also, on motion of any party or on its own motion, enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of the state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. (Code Civ. Proc., § 391.7, subd. (a).)

DISCUSSION

In this case, Plaintiff has filed a Motion asserting Defendant is a vexatious litigant under Code of Civil Procedure section 391, subdivision (b)(3). That subdivision provides: “When the person, in any litigation, while acting as a self-represented litigant: (1) repeatedly files unmeritorious motions, pleadings, or other papers; (2) conducts unnecessary discovery; or (3) engages in other tactics that are frivolous or solely intended to cause unnecessary delay.”

In support of the Motion, Plaintiff contends that on June 10, 2026, just five days after the Court denied Ms. Thieriot’s various motions to vacate the default and default judgment—she filed yet another “Motion for Relief from Void Judgment,” seeking the same relief the Court had just denied. (Haevernick Reply Decl., ¶ 5.) On July 17, 2026, this Court issued a tentative ruling striking Ms. Thieriot’s June 10, 2026 motion and denying relief, finding that Ms. Thieriot “seeks the same relief” already denied by the Court’s June 5, 2026 order, that the filing “merely rehashes the same ‘void judgment’ and ‘lack of jurisdiction’ theories this Court has already rejected,” that it violated the Court’s November 14, 2025 order prohibiting further filings, was untimely under Code of Civil Procedure section 1005(b), and exceeded the 15-page limit after Ms. Thieriot had already filed approximately 60 pages of briefing in support of her various motions to vacate. (*Id.*, ¶ 5, Ex. 1A.) Indeed, as previously stated by this court in its prior orders, filings by the Defendant tend to be “voluminous”.

On June 15, 2026, Ms. Thieriot then filed a special proceeding against Mr. Petracca in the Supreme Court of the State of New York, Nassau County (*Elisabeth L. Thieriot v. Lester Petracca and Tracy Petracca*; Index No. 609660/2026) (the “New York Action”). (Haevernick Reply Decl., ¶ 6, Ex. 1B.) The claims she asserts in the New York Action are essentially recycled arguments that were already rejected by this Court—including theories that she discharged the debt through “lawful money” tenders and that the promissory note extinguished all prior security interests. (*Id.*) Mr. Petracca filed a motion to dismiss the New York Action citing *res judicata*, collateral estoppel, full faith and credit, and failure to state a claim. (*Id.*, Ex. C.)

On July 30, 2026, Ms. Thieriot then filed a 14-page “Notice of the Mandatory, Non-Discretionary Removal of Void Judicial Acts, Including Orders, Sanctions, Defaults, Judgments, Liens, the Striking of Derivative Motions, and All Other Derivative Judicial Acts.” (*Id.*, ¶ 7, Ex. 1C.) This filing once again recycles the same theories previously advanced by Ms. Thieriot. In it, Ms. Thieriot demands the “mandatory removal” of every order entered in this case. (*Id.*, Ex. D.) On August 24, 2026, Ms. Thieriot filed yet another paper titled “Notice to the Clerk Regarding Recognition of Judicial and Ministerial Authority.” (*Id.*, ¶ 8, Ex. 1D.) The Notice states that she recognizes a judicial officer’s authority only to the extent the officer acts within lawful jurisdiction and otherwise recognizes the officer only in a ministerial capacity. (*Id.*)

On this record, this case is hotly contested due to, in large part, the conduct of the Defendant. Honorable Judge Andrew Sweet, on November 20, 2025, directed the clerk to enter default against the Defendant, and instructed the clerk's office to not accept any more filings from her, aside from a motion to set aside the default. Moreover, on February 13, 2026, this court ruled that Defendant’s filing titled “Supplemental Notice of Record Clarification” on February was inappropriate and it was struck from the record as it violated the Court’s prior order.

These repeated filings violate the court’s November 14, 2025, order, directing the court from accepting filings from the defendant.

Under Code of Civil Procedure section 391(b)(3), the relevant inquiry is whether the filing is “unmeritorious,” i.e., that it has “no reasonable probability of success.” (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 972.) Multiple requests for the same relief and repeated attempts to relitigate the same issues “create[] an unmeritoriousness” warranting the vexatious litigant designation. (*Golin v. Allenby* (2010) 190 Cal.App.4th 616, 632.) Here, Ms. Thieriot continues recycling the same handful of discredited theories, and the Court has previously characterized her filings as “incessant meritless nonsense.” (Haevernick Decl., ¶ 27, Ex. G at p. 2.)

There is no questions that Ms. Thieriot’s conduct in this action satisfies Code of Civil Procedure section 391, subdivision (b)(3)’s requirements. The Court therefore GRANTS the request to declare Ms. Thieriot a vexatious litigant.

After such a determination, the Court will incorporate this order as a prefiling order that prohibits the litigant from filing any new litigation in a California court as a self-represented litigant without first obtaining permission from the presiding judge of the court in which the litigant proposes to file the litigation. (Code Civ. Proc., § 391.7(a).) This remedy is directed at precluding a vexatious litigant from initiating meritless litigation and the costs associated with defending that litigation. It also affords protection to defendants named in pleadings not yet filed with the court.

Defendant’s history of repeatedly submitting legal filings which are unmeritorious, frivolous, or solely intended for delay, amply proves the need for a pre-filing order. The Motion is GRANTED. (Code Civ. Proc., § 391.7(a).)

The Court declares Defendant a vexatious litigant and enters a prefiling order under section 391.7(a).

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003098

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: BARCLAYS BANK
DELAWARE

vs.

DEFENDANT: DAVID MORALES

NATURE OF PROCEEDINGS: MOTION – AMEND

RULING

Plaintiff filed a Motion to correct a clerical mistake made by the bank in which the Plaintiff failed to add an additional service charge of \$71.02, to the total judgment. The judgment was entered almost 2 years ago on or about December 13, 2024.

Plaintiff's motion to correct the judgment to add a \$71.02 service charge is DENIED.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003730

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: NANCY DREW, ET AL

vs.

DEFENDANT: MARY CROWLEY

NATURE OF PROCEEDINGS: MOTION – CONSOLIDATE

RULING

Plaintiff Nancy Drew’s (“Plaintiff” or “Ms. Drew”) motion to consolidate is GRANTED. (Code Civ. Proc., § 1048.)

I. BACKGROUND

This is an elder abuse action. Plaintiff originally filed this case through her guardian ad litem, her brother, Robert Drew. (Complaint, ¶ 2.) Defendant Mary Crowley (“Defendant”) is a former neighbor and acquaintance of Nancy Drew. (*Id.* at ¶ 3.)

The complaint alleges that Plaintiff executed a trust in 1999 and a will in 2014. (Complaint, ¶¶ 10-11.) The will gave the entirety of her estate to the trust and named her brother, Robert, the executor of her estate. (*Id.* at ¶ 13.) Plaintiff subsequently named her brother the successor trustee of the trust. (*Id.* at ¶ 17.) These documents allegedly did not mention Defendant. (*Id.* at ¶ 18.)

At the time this action commenced in 2024, Plaintiff was 85 years old and had allegedly been suffering from cognitive impairment resulting from Alzheimer’s disease for a few years. (Complaint, ¶¶ 9, 20.) The complaint asserts that Plaintiff had lacked the mental capacity to make decisions on her own behalf since approximately early April 2023. (*Id.* at ¶ 21.)

Plaintiff alleges that beginning around that time, Defendant began to exercise undue influence over Plaintiff to induce her to make Defendant a beneficiary of her estate. According to the complaint, Defendant isolated Plaintiff from her friends, family, and attorney; demanded that she not communicate with Robert Drew. The complaint alleges that Plaintiff fired the attorney who had drawn up her initial estate plans, and that she retain an attorney of Defendant’s choosing; and caused her to change her longstanding estate plan to make Defendant a beneficiary. (Complaint, ¶ 23.)

Plaintiff asserts claims for statutory elder abuse, conversion, and various other causes of action all arising out of Defendant's allegedly isolating and taking advantage of Plaintiff. Defendant responded by filing a cross-complaint against Robert Drew accusing him of committing financial elder abuse against Plaintiff. The cross-complaint also seeks declaratory relief in the form of an order establishing that Robert Drew has no interest in Plaintiff's estate, as her revised estate planning documents are valid. (Cross-Complaint, ¶ 27.)

Plaintiff passed away in July 2025. (Lieberman Dec., ¶ 7.) Robert Drew and another petitioner, Cindi Baker, then commenced a probate proceeding challenging the validity of Plaintiff's revised estate planning documents. The First Amended Petition in the probate action¹ seeks an order invalidating Plaintiff's 2024 will and the 2024 restatement of her trust on the basis that Defendant exacted these documents from Plaintiff through undue influence amounting to elder abuse. (See Pltf.'s RJN, Ex. 1, ¶¶ 3, 67, 87-90.)

II. LEGAL STANDARD

"When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).) "Whether separate actions shall be consolidated for trial . . . is matter within the discretion of the trial court." (*McArthur v. Shaffer* (1943) 59 Cal.App.2d 724, 727.) "[A] trial court granting consolidation must determine whether the consolidation will be for all purposes or will be limited." (*Committee for Responsible Planning v. City of Indian Wells* (1990) 225 Cal.App.3d 191, 196, fn. 5.)

III. DISCUSSION

Under California Rule of Court, rule 3.350, a notice of motion to consolidate must list all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; must contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and must be filed in each case sought to be consolidated. (Cal. Rule of Court, rule 3.350(a).) Plaintiff's notice of motion does not comply with any aspect of this rule. Judge Chou, who is presiding over the probate matter, has admonished Plaintiff for failure to comply with Rule 3.350 on two prior occasions. (See July 16, 2026, Probate Minutes in Case No. PR0001434; August 20, 2026, Probate Minutes in the same.) Compliance with this rule is required for the clear purpose of ensuring that all parties to both cases have notice of the attempt to consolidate the cases. One of the petitioners in the probate case, Cindi Baker, is not a party to the civil case, and but for the identity of her counsel, she would have no reason to know of the motion to consolidate filed solely in this civil action.

Because Robert Drew and Cindi Baker are represented by the same attorney in the probate matter, and that attorney is the attorney that filed this motion to consolidate in the civil action. Ms. Baker is represented by the same attorney who is litigation both the probate and civil matters. She has notice of this action.

¹ Plaintiff's request for judicial notice of this material is granted. (Evid. Code, § 452, subd. (d).)

Plaintiff's complaint, Defendant's cross-complaint, and the probate action – involve numerous common questions of law and fact, which will be resolved by an analysis of the same evidence. (See Code Civ. Proc., § 1048, subd. (a); see also *Todd-Stenberg v. Dalon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 979 [trial court did not err in ordering consolidation where a large portion of trial would involve common issues with common proof].) These issues include, but are not limited to, the progression of Plaintiff's illness and whether she had the legal capacity required to devise property; Defendant's relationship with Plaintiff; and Defendant's involvement in Plaintiff's changing her estate plan. (Lieberman Dec., ¶ 9.)

Plaintiff's claims in this case and the claims at issue in the probate action overlap. In her motion for judgment on the pleadings in this action, Defendant compared the probate matter to this case and stated, "[T]he core legal and factual issues in both cases, including Nancy Drew's mental capacity, the validity of estate planning instruments, and allegations of financial elder abuse, substantially overlap. The civil proceeding has become . . . legally duplicative of the pending probate matter." (Def.'s Mem. in Supp. of Mot. for Judgment on the Pleadings [filed February 27, 2026], p. 4.) As Plaintiff puts it, the civil action and the probate action "present two procedural vehicles through which the Court is being asked to determine the same controversy." (Memorandum, p. 5.) As a result, consolidating these cases will have efficiency benefits for both the parties and the Court.

Defendant's argument that she is prejudiced by case consolidation is not compelling.

On August 7, the Court granted Defendant's motion for judgment on the pleadings in this action with leave to amend on the basis that Robert Drew, the late Ms. Drew's guardian ad litem, does not have standing to prosecute her claims now that she has died. (Aug. 7, 2026, Order, p. 2.) The Court noted that in this state, a guardian ad litem is not a party to an action – he is merely the representative of record of a party. (*Ibid.*) Upon the ward's death, the guardian ad litem loses standing to prosecute the case and a proper party must be substituted into the action through the procedure set forth in Code of Civil Procedure, section 377.30 *et seq.* (*Ibid.*) When Plaintiff died, Robert Drew lost standing to prosecute this case on her behalf as her guardian ad litem. No plaintiff has yet been substituted into this case to replace the late Ms. Drew, and no amended complaint has yet been filed.

Defendant argues that because there is currently no proper plaintiff for purposes of Ms. Drew's complaint, the motion must be denied for want of a plaintiff qualified to invoke the legal process. However, whether he has standing to prosecute the late Ms. Drew's claims or not, Robert Drew is a party in both this action and the probate action. He is a cross-defendant in this action, as Defendant has filed a cross-complaint against him as an individual, and he is a petitioner in the probate action. Under these circumstances, the Court sees no reason why he would not be entitled to seek consolidation of these cases. Allowing him to do so does not permit him to proceed as a plaintiff on the merits of Ms. Drew's claims against Defendant without following the required procedure for substitution.

Because the parties in the two actions are not identical due to the presence of Ms. Baker in the probate action, consolidation shall be for purposes of trial only. (See *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147 [discussing the difference between the two types of

consolidation, consolidation for purposes of trial only and consolidation for all purposes]; *Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396 [“[C]omplete consolidation . . . may be utilized where the parties are identical and the causes could have been joined[.]”]; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) § 12:341.1.) The lead case shall be the probate matter.

Plaintiff’s motion to consolidate with the related probate matter is GRANTED under Code of Civil Procedure section 1048. Despite earlier Rule 3.350 notice deficiencies, all parties have notice through common counsel. The cases involve common issues concerning capacity, undue influence, and estate planning documents; consolidation will promote efficiency. Consolidation is for trial only because the parties are not identical; the probate matter is the lead case.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

IT IS ORDERED Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court’s website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.

FURTHER ORDERED Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party’s connection is inadequate, the Court may proceed in that party’s absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005099

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: NEXTECH SYSTEMS INC.

vs.

DEFENDANT: PLASTIC SURGERY
SPECIALISTS, INC. A CALIFORNIA
CORPORATION

NATURE OF PROCEEDINGS: MOTION – SANCTIONS – DISCOVERY FACILITATOR
PROGRAM

RULING

Pursuant to Marin County Rule, Civil 2.13B, on September 9, 2026, Scott Slomiack, Esq. was appointed to preside as Discovery Facilitator for Plaintiff's Motion for terminating sanctions for failure to comply with prior orders regarding on discovery entered on May 1, 2026.

By prior order, the Court appointed a Discovery Facilitator under Marin County Rule Civ. 2.13B. Considering the timing of that appointment, the hearing on Plaintiff's motion for terminating sanctions is CONTINUED to October 16, 2026, at 1:30 p.m. The parties must comply with MCR Civ. 2.13H, including timely filing a Declaration of Non-Resolution (no more than three pages) summarizing the remaining disputed issues and each party's contentions

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005220

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MARTHA CARBALLO

vs.

DEFENDANT: THE WOODLANDS STORE
HOLDINGS, INC., ET AL

NATURE OF PROCEEDINGS: MOTION - OTHER: FINAL APPROVAL OF CLASS
ACTION SETTLEMENT AGREEMENT

RULING

On April 17, 2026, the court entered an order preliminarily approving a settlement of class claims for settlement purposes pursuant to Code of Civil Procedure § 382, and preliminary approval of a class action settlement under California's Private Attorney General Act, Labor Code § 2698, et seq.

Defendant stipulated to certification of the Class and PAGA claims for purposes of settlement only.

The court has reviewed the declarations of Tiffany Hyun and Elizabeth Botero on behalf of class counsel, and of the representative Plaintiff, Ms. Carballo, filed in support of final approval and hereby grants the request for FINAL APPROVAL of the class claims and payment distribution.

The court will sign the lodged order.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

FURTHER ORDERED Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0007753

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JOSHUA FOSTER

vs.

DEFENDANT: GOLDEN GATE BRIDGE
HIGHWAY AND TRANSPORTATION
DISTRICT

NATURE OF PROCEEDINGS: MOTION – CHANGE OF VENUE

RULING

Plaintiff Joshua Foster’s motion to transfer venue is DENIED.

FACTUAL BACKGROUND

This action arises out of Plaintiff Joshua Foster’s (“Plaintiff”) employment with Defendant Golden Gate Bridge Highway and Transportation District (“Defendant”). On October 23, 2023, Plaintiff, an African-American male, began working for Defendant as an environmental, health and safety specialist. He alleges he was subject to discrimination and harassment based on race. He also alleges he was retaliated against for raising concerns and filing formal complaints regarding workplace safety violations. Plaintiff was terminated on September 27, 2024.

On September 25, 2025, Plaintiff filed this action. On January 8, 2026, Plaintiff filed his operative First Amended Complaint (“FAC”) alleging the following causes of action: 1) race and national origin discrimination; 2) hostile work environment harassment; 3) failure to prevent and remedy harassment under FEHA; 4) retaliation under Labor Code section 6310; and 5) retaliation under Labor Code section 1102.¹ The FAC alleges that Plaintiff lives in San Rafael and venue is proper in Marin County because Defendant’s principal place of business is located in San Rafael. (FAC ¶¶ 4-5.)

After substitution of new counsel, Plaintiff filed the present motion wherein he seeks to transfer venue to Sacramento County or another neutral county with no relationship to Defendant. (Code

¹ On February 10, 2026, Plaintiff dismissed his 6th cause of action for intentional infliction of emotional distress. On March 3, 2026, the parties filed a stipulation to dismiss the prayer for punitive damages, which the Court entered as an order on March 16, 2026.

of Civ. Proc.², §§ 394 and 397.) He argues Defendant is a local public agency that has governmental, fiscal, and representative ties to Marin County. He also argues there is reason to believe an impartial trial cannot be held in Marin County.

LEGAL STANDARD

The grounds upon which a court may transfer the action are entirely statutory. (Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group June 2025 Update), Ch. 3-D, § 3:549.) On timely motion, the court must order a transfer of an action “when the court designated in the complaint is not the proper court.” (Code of Civ. Proc., §§ 396b, 397(a); *Rycz v. Sup. Ct.* (2022) 81 Cal.App.5th 824, 836.) The question of whether venue is proper is determined at the outset of the action based upon the original complaint. (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 482; *Armstrong Petroleum Corp. v. Superior Court* (1981) 114 Cal.App.3d 732, 738.)

Code of Civil Procedure section 394 provides that an action against a local agency may be tried in the county in which the local agency is situated. (Code of Civ. Proc. Code § 394, subd. (a).) Section 394 provides two transfer mechanisms. When a local agency sues a nonresident in its own county, the case “shall be, on motion of either party, transferred” to a neutral county. (*Id.*) When a local agency is sued, the action “must be, on motion of that defendant, transferred.” (*Id.*)

Section 397 authorizes the Court to change the place of trial: “(b) [w]hen there is reason to believe that an impartial trial cannot be had therein.” This does not mean a party must prove an impartial trial cannot be had, only that there is reason to believe it. (*Id.*) The purpose of this provision is to secure to every litigant the right to a trial of his or her cause before a fair and impartial tribunal, and to provide the procedure through which the right may be enforced and protected. (*Paesano v. Superior Court* (1988) 204 Cal.App.3d 17.) A motion pursuant to section 397 subdivision (b) requires “a showing of actual prejudice to the moving party, and whether the showing has been made is left to the discretion of the trial court.” (*Ohio Casualty Ins. Group v. Superior Court* (1994) 30 Cal.App.4th 444, 452.) A “limited showing [that] does not demonstrate a widespread feeling of prejudice extending over a long time” is insufficient. (*Nguyen v. Superior Court* (1996) 49 Cal.App.4th 1781, 1791.) When discussing the impartiality of a trial, “[a]n impartial trial means a trial impartial as to all litigants therein.” (*People v. Ocean Shore R.R.* (1938) 24 Cal.App.2d 420, 424.)

DISCUSSION

The parties do not seriously dispute that the District is a local agency under section 394. *Golden Gate Bridge, Highway & Transp. Dist. v. Superior Court* (2004) 125 Cal.App.4th 177, 184 [concluding Defendant was a local agency under section 394 for purposes of its motion to transfer venue out of a foreign county].) However, the plain language of section 394 does not authorize a private plaintiff to invoke it to move an action out of the local agency defendant’s home county. Indeed, Plaintiff offers no authority applying section 394 to permit such a transfer by an individual plaintiff. Plaintiff’s motion is therefore denied insofar as it relies on section 394.

² All further statutory references are to the Code of Civil Procedure unless otherwise specified.

Plaintiff also invokes section 397, subdivision (b) asserting he cannot have an impartial trial. In his motion, Plaintiff states Defendant's "purpose is to operate and maintain the Golden Gate Bridge and provide public transit services, and that the District Board has four Marin County representatives appointed through Marin County channels. The District Board itself is composed of 19 members representing six counties." (Memo. of Points and Authorities, 4:9-13.) Plaintiff also states that "a coworker said Black people 'do not live in Marin County.'" (*Id.*, 10:17-20.) Plaintiff's counsel submits a declaration stating "Defendant is situated and where Marin County has governmental, fiscal, and representative ties to the District." (Declaration of Elias Fakhoury ("Fakhoury Decl."), ¶ 3.) He concludes that "Sacramento is the most neutral forum for this action given the potential bias issues that may arise in other nearby counties." (*Id.*, ¶ 5.)

However, Plaintiff presents no direct evidence to support these conclusions. Counsel claims no personal knowledge of Defendant, its Board, its finances or the Marin County jury pool, and instead relies on speculation. He also does not identify what the potential "issues" he refers to actually are. The pleaded allegation that a coworker remarked that Black people "do not live in Marin County," this does not appear to concern any prospective juror, and is unaccompanied by any evidence about the Marin County jury venire. Plaintiff also failed to state why any hypothetical juror bias could not be eliminated during voir dire. (§ 225, subd. (1)(C).) Plaintiff has not shown that an impartial trial cannot be had in Marin County. Plaintiff's motion is denied.

Finally, Defendant has requested that the Court award it their attorneys' fees and costs incurred in connection with opposing the motion. If the motion is made upon the ground that the action was filed in an "improper" county, the court may order the losing party's counsel to pay the prevailing party's reasonable expenses and attorney fees in making or resisting the motion. (§ 396b(a), (b).) Section 396b does not apply to the instant motion. The request for fees is DENIED.

For the foregoing reasons, Plaintiff's motion for change of venue is DENIED. The case shall remain in the Superior Court of California, County of Marin.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

IT IS ORDERED Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.

FURTHER ORDERED Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008299

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: AMERICAN EXPRESS
NATIONAL BANK

vs.

DEFENDANT: DIANNE HARTNETT

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Plaintiff American Express National Bank’s unopposed motion for summary judgment is GRANTED. Plaintiff established the loan agreement, performance by funding, Defendant’s default and acceleration, and damages of \$85,227.30. (Code Civ. Proc., § 437c, subds. (c), (p)(1).) Plaintiff has met its burden showing no triable issues of material fact exist as to any of the alleged causes of action.

Facts

Plaintiff filed this action on November 5, 2025, against defendant Dianne Hartnett (“Defendant”) alleging a cause of action for breach of contract.

Defendant applied to Plaintiff for a loan and entered into a written agreement with Plaintiff to be bound by the terms and conditions set forth in the Truth in Lending disclosure agreement, including the terms of the loan and acceptance of the agreement. (Plaintiff’s Separate Statement of Undisputed Material Facts (“SS”) Nos. 1-7.) Defendant used the funds, and Plaintiff complied with its obligations under the Agreement. (SS Nos. 3, 4.) There is no record of Defendant asserting an objection to the amount of the balance due and owing on the monthly statements that were provided to the Defendant, reflecting all debts and credits to Defendant’s account. (SS Nos. 4-5.)

Defendant defaulted on the loan, and Plaintiff accelerated the account balance so that the entire unpaid balance on the account became immediately due and payable. (SS No. 7.) Defendant owes Plaintiff \$85,227.30 on the principal balance. (SS No. 7.)

Standard for Summary Judgment

A plaintiff moving for summary judgment meets his or her burden of proof by showing there is no defense to each cause of action by proving each element of the cause of action. (Code Civ. Proc., § 437c(p)(1); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 [“summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by defendant as well as prove each element of his own cause of action. . . . All that the plaintiff need do is to ‘prove [] each element of the cause of action’ ”].) Once a plaintiff meets this burden, the burden shifts to defendant “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c(p)(1).)

Discussion

Plaintiff claims it is entitled to summary judgment against Defendant on the grounds that there is no defense to this action. (Notice, pp. 2:4-8.) Plaintiff alleges a breach of contract against Defendant.

The elements of a breach of contract cause of action are: (1) the existence of a contract; (2) the plaintiff's performance or excuse for nonperformance of the contract; (3) defendant's breach; and (4) damage to plaintiff resulting from the breach. (*State Compensation Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449 (“ReadyLink”).)

Here, Plaintiff proffers evidence of business loan agreement, that Plaintiff performed its obligation under the terms of the agreement by extending funds and that Defendant failed to honor the obligations under the terms the loan agreement by failing to pay the sums owed to Plaintiff, and that Plaintiff is owed a sum certain in the amount of \$85,227.30. (SS Nos. 1-7.)

The Court finds that Plaintiff has met its burden establishing each element of its cause of action for breach of contract. (SS No. 1-7.) Without controverting evidence, the Court GRANTS Plaintiff's motion for summary judgment.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court.

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008333

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: TIMOTHY ROMPEL

vs.

DEFENDANT: PRIME SKYLARK, LLC ET
AL

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendants' demurrer to the Seventh Cause of Action (Larkspur Municipal Code § 6.30.030 et seq.) is **SUSTAINED WITH LEAVE TO AMEND**. Plaintiff must plead the alleged 'just cause' deficiency and tie Defendants' conduct to an intent to obtain possession, with statutory particularity.

I. Allegations in Plaintiff's First Amended Complaint

Plaintiff Timothy Rompel alleges that he is a 75 year old disabled veteran who was a residential tenant at Unit 14 of Defendants' multi-unit property on Skylark Drive in Larkspur. Plaintiff had resided in his unit, which was under rent-control, since August 1999. In July 2024, a new tenant moved into Unit 16, located directly below Plaintiff's unit, and Plaintiff immediately began to experience the smell of smoke, vaping fumes and chemical odors entering his unit. Plaintiff sent repeated emails to Defendants documenting burning eyes, dizziness, nausea, heart irregularities, blood-pressure spikes, headaches, breathing difficulty, and ringing in his ears. He also began to experience near constant floor and wall vibrations emanating from Unit 16. Rather than enforce the no smoking policy or abate the nuisance, Defendants offered to transfer Plaintiff to an alternative unit that was less desirable, as it would have required him to go up three flights of stairs. Plaintiff alleges that it was reasonably foreseeable to Defendants that if they did not abate the nuisance of enforcing the nonsmoking policy, Plaintiff would be forced to vacate his rent-controlled home. Plaintiff was ultimately forced to vacate to protect his health and well-being. Plaintiff asserts causes of action for constructive eviction, breach of the implied warranty of habitability, nuisance, breach of the covenant of quiet enjoyment, negligence, breach of contract, violation of Larkspur Municipal Code Section 6.30.030 et seq., and violation of Civil Code Section 1950.5.

II. Procedural Deficiency

Defendants failed to comply with Code of Civil Procedure Section 430.41(a)(3), which requires that the demurring party meet and confer “in person, by telephone, or by video conference”. Defendant must address this failure to meet and confer at the hearing, should either party request appearances or contest the tentative ruling.

The Court nevertheless reminds Defendants to follow all applicable rules when filing matters with the court. (Code Civ. Proc. § 430.41(a)(4).

III. Request for Judicial Notice

Defendants’ request for judicial notice of the First Amended Complaint is granted.

IV. Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 [citation and internal quotations omitted].) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe*, 42 Cal.4th at 551, fn. 5.) The court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Discussion

Defendants demur to the Seventh Cause of Action for violation of Larkspur Municipal Code Section 6.30.030 et seq.

In the Seventh Cause of Action, Plaintiff alleges that Defendants’ failure to cure the dangerous conditions and reduction of housing services caused Plaintiff to abandon his rent-controlled home. Defendants attempted to recover possession of Plaintiff’s unit in a manner not permitted by the Larkspur Just Cause and Tenant Protection Ordinance (the “Ordinance”), thereby violating Section 6.30.030 et seq.

Section 6.30.030 provides: “A. Notwithstanding any other law, after a tenant has continuously and lawfully occupied a residential real property for thirty (30) days, the owner of the residential real property shall not terminate the tenancy without just cause, which shall be stated in the written notice to terminate tenancy. B. For purposes of this chapter, “just cause” includes either at-fault just cause or no-fault just cause.” “At-fault just cause” is defined in Section 6.30.040 and “no-fault just cause” is defined in Section 6.30.040.

Defendants argue that Plaintiff fails to allege a statutory violation with the requisite particularity. (See *Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 619.) The demurrer is

sustained on this basis. Plaintiff alleges in another part of his Amended Complaint that he was constructively evicted based on Defendants' failure to remedy the intolerable and dangerous conditions. (Amended Complaint, ¶¶22, 23.) While Plaintiff may believe these allegations imply that the termination of his tenancy was without just cause as that term is defined in Sections 6.30.40 and 6.30.50, this is not actually alleged. Plaintiff should also expressly tie his allegations about Defendants' conduct to Defendants' alleged intent to wrongfully obtain possession. As noted above, statutory violations must be alleged with particularity.

The Court does not address the issue of whether a constructive (as opposed to actual) eviction¹ can be the basis for liability under the Ordinance as this issue has not been adequately briefed by the parties. The parties address the issue briefly but do not cite or discuss any applicable legislative history or statutory construction principles based on the specific language of this Ordinance.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

IT IS ORDERED Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.

FURTHER ORDERED Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).

¹ "An eviction is actual when a landlord takes direct action to physically expel the tenant from the premises. An eviction is constructive if the landlord engages in acts that render the premises unfit for occupancy for the purpose for which it was leased or deprive the tenant of the beneficial enjoyment of the premises." (*Cunningham v. Universal Underwriters* (2002) 98 Cal.App.4th 1141, 1152.)"

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008573

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: HOMETAP HEI FUND II
SPV I, A DELAWARE STATUTORY TRUST

vs.

DEFENDANT: CANDANCE CAIN
O'DENVER, ET AL

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant Stefano Schiavi filed a Demurrer on July 30, 2026, alleging that Plaintiff Hometap Fund, ending business that provides Home Equity Investments ("HEI") and other financing products to property owners, failed to properly identify the proper legal owner of 377 Ocean Parkway, Bolinas, California 94924. The pleading is unopposed.

Hearing on Defendant's demurrer is CONTINUED to October 9, 2026, at 1:30 p.m.

If the Demurrer is unopposed, it will likely be sustained. The parties must meet and confer on whether an amended complaint identifying the proper property owner will resolve the issues.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008540

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: PHILLIS HAMILTON-
HOLLAND, BY AND THROUGH HER
SUCCESSOR-IN-INTEREST, TRACI
HAMILTON, ET AL

vs.

DEFENDANT: KENTFIELD AND SAN
FRANCISCO SPECIALTY HOSPITAL, INC

NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

RULING

Counsel Justin Vitug, Esq.’s motion to be relieved as counsel, citing a breakdown in communications with his client, the named Plaintiff, is on calendar. No response from Plaintiff has been received. Defendant has not yet been served. Appearances are **REQUIRED** .

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court’s website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party’s connection is inadequate, the Court may proceed in that party’s absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0009471

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: HAROLD PERRY

VS.

DEFENDANT: GOODWILL OF THE SAN
FRANCISCO BAY

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Appearances are required.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0010410

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: YUKTI MEHTA

vs.

DEFENDANT: RESTORATION
HARDWARE INC.

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Defendant Restoration Hardware, Inc.’s motion to compel arbitration is DENIED. Plaintiff plausibly alleges a sex-based hostile work environment constituting a ‘sexual harassment dispute’ under 9 U.S.C. § 402 (EFAA). Under controlling authority, the EFAA renders the pre-dispute arbitration agreement unenforceable as to the case motion to compel arbitration is denied.

I. The Arbitration Agreement

Defendant submits a copy of an Arbitration Agreement (the “Agreement”) signed by Plaintiff when she began working at RH Marin. The Agreement provides in part:

This Mutual Agreement to Binding Arbitration of Claims (“Arbitration Agreement”) is entered into by and between Employee, as identified below, and RH US, LLC (“the Company”) (each, a “Party”, and collectively, the “Parties”) as of the date set forth below. Employee and Company recognize that differences may arise between them arising out of Employee’s employment with the Company. The Parties understand and agree that by entering into this Arbitration Agreement, each of them gains the benefits of a speedy, impartial, final, and binding dispute resolution procedure.

Claims Covered By This Arbitration Agreement. *Employee and the Company agree to arbitrate any claim, dispute, and/or controversy that either Employee may have against the Company (or its owners, directors, officers, managers, employees, agents, and parties affiliated with its employee benefit and health plans), or the Company may have against Employee, arising from, related to, or having any relationship or connection whatsoever with Employee’s seeking employment, Employee’s employment, or Employee’s other association with the Company. Included within the scope of this*

Arbitration Agreement are all disputes, whether based on tort, contract, statute (including, but not limited to, any claims of discrimination and harassment, whether they be based on the California Fair Employment and Housing Act, Title VII of the Civil Rights Act of 1964, as amended, or any other state or federal law or regulation), equitable law, or otherwise.

Both Employee and the Company waive any right to pursue claims in arbitration (or in court or any other forum) on a class basis or as a collective action. This waiver does not apply to Employee's right to bring a representative action in court (but not in arbitration) under the California Labor Code Private Attorneys General Act of 2004 or other similar laws which permit employees to bring a representative action to recover civil penalties and other relief that are otherwise only recoverable by the State of California acting through any of its departments, divisions, commissions, boards, agencies or employees.

(Declaration of Emmanuelle Tobola, Exh. A.)

II. Request for Judicial Notice

Defendant's request for judicial notice of the Order Granting Defendant's Motion to Compel Arbitration, dated July 18, 2025, in *Hector Torres v. Restoration Hardware Holdings, Inc.*, Marin County Superior Court, Case No. CV0005457 (Exhibit A) and the Minute Order Granting Defendant's Motion to Compel Arbitration, dated November 5, 2024, in *Duvan Trujillo v. Restoration Hardware Holdings, Inc.*, Los Angeles County Superior Court, Case No. 24STCV15341 (Exhibit B) is granted. (Evid. Code §§ 42, 453.)

III. Discussion

Plaintiff does not dispute that she signed the Agreement. She opposes the motion, however, on the ground that the Ending Forced Arbitration Act ("EFAA") applies and thus she cannot be compelled to arbitrate any of her claims.

Section 402 of the FAA, known as the EFAA, provides:

(a) In general.--Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute . . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.

(b) Determination of applicability.--An issue as to whether this chapter applies with respect to a dispute shall be determined under Federal law. The applicability of this chapter to an agreement to arbitrate and the validity and enforceability of an agreement to which this chapter applies shall be determined by a court, rather than an arbitrator, irrespective of whether the party resisting arbitration challenges the arbitration agreement specifically or in conjunction with other terms of the contract containing such

agreement, and irrespective of whether the agreement purports to delegate such determinations to an arbitrator.

(9 U.S.C. § 402.) “[T]he exemption applies to the *case*, not individual claims, where a plaintiff alleges conduct constituting sexual harassment or sexual assault . . . the EFAA renders an arbitration agreement unenforceable as to the *entire case*, not merely the sexual harassment claim.” (*Quilala v. Securitas Security Services USA, Inc.* (2025) 117 Cal.App.5th 75, 86-87 [emphasis in original].)

Defendant argues that the EFAA does not apply because Plaintiff alleges gender harassment, not sexual harassment, and Section 12940(j)(4)(C) acknowledges that the two are different categories. Specifically, Government Code Section 12940(j)(1) provides that it is unlawful for an employer to harass an employee because of, among other things, sex or gender. Section 12940(j)(4)(C) provides that “harassment” because of sex includes sexual harassment, gender harassment, and harassment based on pregnancy, childbirth, or related medical conditions. Sexually harassing conduct need not be motivated by sexual desire.”

Section 12940(j)(4)(C) is somewhat confusing, as it refers both to “sexual harassment” and “harassment based on sex” as two different things, but then states that “harassment based on sex” includes “sexual harassment”. It is unclear if all “harassment based on sex” would constitute “sexual harassment” for purposes of the EFAA exemption, which uses only the term “sexual harassment” dispute and not “harassment based on sex.” Regardless of how Plaintiff’s claims are labelled, however, the Court will focus on the substance of her factual allegations to determine if Plaintiff asserts a “sexual harassment” dispute.

When determining whether the EFAA applies, the court first determines whether the plaintiff’s allegations state a plausible claim of sexual harassment, bringing the dispute within the scope of the EFAA. (*Quilala*, 117 Cal.App.5th 75 at pp. 86-87.) “A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged. [Citation.] The plausibility standard is not akin to a ‘probability requirement,’ but it asks for more than a sheer possibility that a defendant has acted unlawfully.” (*Ashcroft v. Iqbal* (2009) 556 U.S. 662, 678.) In *Quilala*, the court found that the plaintiff stated a plausible sexual harassment claim because he alleged facts showing his supervisors and coworkers subjected him to “repeated and humiliating conduct” because of his perceived sexual orientation. As a result, the plaintiff’s allegations brought the dispute within the scope of the EFAA. (*Quilala*, 117 Cal.App.5th 75 at pp. 86-87.) In *Decloedt v. Radnet Management, Inc.* (2026) 121 Cal.App.5th 732, the court first noted that sexual orientation harassment is a form of sexual harassment under FEHA. Applying a standard of evaluating the plausibility of plaintiff’s claim similar to Rule 12(b)(6), the court found that the plaintiff stated a plausible sexual harassment claim where he alleged that his coworker repeatedly chastised him for his homosexuality, frequently expressed anger stating she was so angry she could kill him, pulled his hair several times, and grabbed his hair once so forcefully that he fled to the restroom to escape her, and that the coworker engaged in this abusive conduct because she disapproved of the plaintiff’s sexual orientation. (*Id.* at pp. 745-746.) As a result, the EFAA’s exemption to the

FAA applied and the trial court properly denied the defendant's motion to compel arbitration. (*Id.* at p. 748.)¹

Under the above authorities, the first step is to determine whether Plaintiff has alleged a plausible sexual harassment dispute. “[T]o establish liability in a FEHA hostile work environment sexual harassment case, a plaintiff employee must show she was subjected to sexual advances, conduct, or comments that were *severe enough or sufficiently pervasive to alter the conditions of her employment and create a hostile or abusive work environment*. Although annoying or ‘merely offensive’ comments in the workplace are not actionable, conduct that is severe or pervasive enough to create an objectively hostile or abusive work environment is unlawful, even if it does not cause psychological injury to the plaintiff.” (*Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 283 [citations omitted] [emphasis in original].) “[T]he prohibition against sexual harassment includes protection from a broad range of conduct, [including] the creation of a work environment that is hostile or abusive on the basis of sex. [A] plaintiff in a sexual harassment suit must show the conduct at issue was not merely tinged with offensive sexual connotations but actually constituted discrimina[tion] . . . because of . . . sex.

To plead a cause of action for ... sexual harassment, it is only necessary to show that gender is a substantial factor in the discrimination, and that if the plaintiff had been a man [or a woman, he or] she would not have been treated in the same manner. Accordingly, it is the disparate treatment of an employee on the basis of sex - not the mere discussion of sex or use of vulgar language - that is the essence of a sexual harassment claim.” (*Kruitbosch v. Bakersfield Recovery Services, Inc.* (2025) 114 Cal.App.5th 200, 211 [citations and internal quotations omitted].) “[A] plaintiff may establish a hostile work environment without demonstrating the existence of coercive sexual conduct directed at the plaintiff or even conduct of a sexual nature.” (*Decloedt*, 121 Cal.App.5th at p. 744 [citations and internal quotations omitted].)

Generally, common management duties such as hiring, firing, office or workstation assignments, or deciding who will be laid off, do not constitute harassment. (See *Reno v. Baird* (1998) 18 Cal. 4th 640, 647.) However, “some official employment actions done in furtherance of a supervisor’s managerial role can also have a secondary effect of communicating a hostile message . . . when the actions establish a widespread pattern of bias.” (*Roby v. McKesson Corp.* (2009) 47 Cal. 4th 686, 705–709.)

Plaintiff makes the following allegations to support her sexual harassment claim: (1) Kefalos commented to Plaintiff that she had been pregnant when they worked together previously (§13), (2) Kefalos repeatedly made harassing remarks to Plaintiff and her female colleagues, including statements to the effect of “having a family will hold you back from moving up,” and that “pregnant women or women with families don’t get ahead in this industry” (§15), (3) Kefalos treated female employees, particularly those with children or who were pregnant, more harshly;

¹ Some federal courts have, like *Decloedt*, applied a Rule 12(b)(6) plausibility analysis in determining whether a plaintiff’s allegations are sufficient to invoke the EFAA in the first place. (See *SU AI v. Tencent America LLC*, No. 26-cv-02498-NW, 2026 WL 2170875 (N.D. Cal. July 28, 2026).) Without a plausibility or similar preliminary analysis, a plaintiff could simply allege sexual harassment, regardless of merit, to avoid arbitration. (See *Liu v. Miniso Depot CA, Inc.* (2024) 105 Cal.App.5th 791 n. 2.)

one female colleague was sent home after clocking in late while a male colleague who arrived late was excused without consequence (§17), (4) Kefalos frequently took Plaintiff off her scheduled shifts or sent her home early, claiming the restaurant was slow even when other employees were permitted to work (§19), (5) Kefalos regularly brushed Plaintiff off, refused to engage, or walked away mid-conversation (§20), (6) Kefalos accused Plaintiff of being condescending when she asked him a question about a change to the POS system (§21), (7) Kefalos reassigned Plaintiff's tables one day, falsely claiming Plaintiff failed to greet a guest, and then sent her home early (§22), (8) RH Marin's HR department did not take action when Plaintiff complained (§26), (9) Plaintiff was told not to return to work until further notice and then received a write up when she returned, which involved purported incidents with customers (§28), and (10) Kefalos accused Plaintiff of using too loud a voice to a guest and criticized Plaintiff for telling a RH Marin manager to come back after they were talking (§32).

The Court finds these allegations to be sufficient to state a plausible sexual harassment claim.

There are sufficient allegations that sex was a substantial factor in Defendant's alleged discriminatory conduct against Plaintiff. Plaintiff's allegations focus on her pregnancy and pregnancy harassment is a form of sexual harassment. In *Holmes v. Petrovich Development Co., LLC* (2011) 191 Cal.App.4th 1047, the plaintiff alleged that she was harassed after she told her employer that she was pregnant. The court ultimately found that the trial court did not err in granting the employer's motion for summary adjudication of the sexual harassment claim because there was an absence of evidence that the employer created a hostile work environment for a reasonable pregnant woman, as there was no severe misconduct or pervasive pattern of harassment. (*Id.* at pp. 1061.) In reaching its decision, the *Holmes* court implicitly recognized pregnancy harassment as a form of sexual harassment. In *Reddy v. Genpact LLC*, No. 2:25-cv-02138-DAD-JDP, 2026 WL 2529764 (E.D. Cal. Aug. 27, 2026), a federal district court found the EFAA applied (and thus a sexual harassment dispute was plausibly alleged) where the plaintiff alleged that the defendant's actions communicated a widespread, demeaning message to the plaintiff that pregnant female employees were not wanted in the defendant's workplace. (*Id.* at p. *3.)

To avoid this result, Defendant cites a Los Angeles Superior Court decision in its Reply (*Thomas*); however Defendant does not attach the case nor request that the Court take judicial notice of it. This reference is not considered.

Defendant also cites a federal district court case out of New York, *Singh v. Meetup LLC*, 750 F.Supp.3d 250 (S.D.N.Y. 2024), which is inapposite because it applied New York employment law and involved different factual allegations. Moreover, in *Ding v. Structure Therapeutics, Inc.*, 765 F.Supp.3d 897 (N.D. Cal. 2025), a federal district court in the Northern District of California declined to follow *Singh*, stating that New York law "says sexual harassment is conduct involving treating the plaintiff less well than the other employees based on her gender". (*Id.* at p. 902.) The *Ding* district court decision was affirmed by the Ninth Circuit in *Ding v. Structural Therapeutics, Inc. NASDAQ*, -- F.4th --, 2026 WL 2420555 (9th Cir. Aug. 19, 2026). In *Ding*, the Ninth Circuit confirmed that a "sex-based hostile work environment claim amounts to sexual harassment under California law even when the harassing conduct is not sexual in nature". (*Id.* at *6.) The court found that the plaintiff had alleged a plausible sexual harassment

claim where she alleged that her employer's CEO wanted to hire a man for the CFO position, hired the plaintiff due to the board's emphasis on gender diversity, immediately began sidelining the plaintiff and diminishing her job responsibilities, adopted sexist and unsupported criticisms that the plaintiff was too aggressive, made light of the facial injuries that the plaintiff suffered from a domestic violence incident while repeatedly questioning the plaintiff's ability to continue her CFO job after that incident and preventing her from attending executive meetings, and terminated the plaintiff raising no performance-related issues but calling out her domestic situation as a factor for the termination. (*Id.* at *7.) The court concluded that the CEO's "alleged preference for a male CFO, reiteration of sexist remarks, belittling of [the plaintiff's] domestic violence experience, and comment about [the plaintiff's] inability to continue her job all support an inference that his conduct towards [the plaintiff] was plausibly based on her sex. Thus, [the plaintiff] has adequately stated a sex-based hostile work environment claim under the FEHA, which constitutes a 'sexual harassment dispute' covered by the EFAA." (*Ibid.*)

Like the plaintiff in *Ding*, and consistent with the California cases cited above, Plaintiff here has alleged sufficient facts to state a sex-based hostile work environment claim, which constitutes a sexual harassment dispute under EFAA.

The motion to compel arbitration is denied on this basis.

The Court need not address the remaining arguments raised in Plaintiff's Opposition.

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